

2019 Y L R 1

[Lahore (Bahawalpur Bench)]

Before Jawad Hassan and Muzamil Akhtar Shabir, JJ

MEHDI HASSAN through Legal Heirs and others---Appellants

Versus

PUNJAB CO-OPERATIVE BANK and others---Respondents

R.F.A. No.134 of 2018/BWP, decided on 11th September, 2018.

(a) Limitation Act (IX of 1908)---

---Ss. 4, 5 & 12---Appeal---Condonation of delay---Sufficient cause---Death of counsel---Time spent in obtaining certified copy, exclusion of---Vacations of court of appeal---Scope---Suit filed by applicant was dismissed and appeal filed was beyond prescribed period of limitation---Applicant sought condonation of delay on the ground that he had handed over the documents to his counsel, who died before filing of appeal and applicant had no knowledge of his death---Validity---Suit filed by applicant was dismissed on 23.5.2018 and he filed appeal on 4.9.2018, that is, after 104 days---Limitation for filing appeal was 30 days from the date of decree---Applicant applied for obtaining certified copies on 29.5.2018 and the same was prepared on 23.7.2018 and delivered on 26.7.2018, which meant that 56 days were required for preparation of the certified copies and 59 days were consumed on the date when copy was actually delivered to the applicant---By deducting 89 days, that is, 30 days for limitation and 59 days required for obtaining certified copies for filing appeal, appeal still remained barred by 15 days---Applicant could only be allowed further time for filing appeal, had the appeal been filed on 3.9.2018, that is, opening day after vacations, which time could then be excluded but the same was not done and appeal was filed on 4.9.2018 thus the period of vacations could not be excluded from limitation---Applicant had not been able to establish that the counsel had accepted the brief from him and it was his duty to keep in contact with the office of his counsel to ensure that appeal was filed within time---Law did not help the indolent and each and every day of delay in filing of appeal was required to be explained by the applicant which was not done and where delay was not explained through sufficient reason, same could not be condoned---Application for condonation of delay was dismissed.

(b) Limitation---

---Condonation of delay---Law did not help the indolent---Each and every day of delay in filing of appeal was required to be explained by the party and where delay was not explained through sufficient reason, same could not be condoned.

Lt. Col. Nasir Malik v. Additional District Judge and others 2016 SCMR 1821 ref.

Fida Hussain Rahat for Appellant.

ORDER

Through this application under Section 5 of the Limitation Act, 1908 ("the Act") the applicant-Appellant seeks condonation of delay in filing the titled appeal under Section 22 of the Financial Institutions (Recovery of Finances) Ordinance, 2001 ("the Ordinance") against judgment and decree dated 23.05.2018 passed by the Judge Banking Court, Bahawalpur ("the Court") in a suit for permanent injunction with declaration filed by the appellant under Section 9 of the Ordinance regarding the land measuring 28-kanals situated in Qaim Pur, Tehsil Hasilpur which was contested by the respondent-Bank by filing of petition for leave to defend "PLA" under Section 10 of the Ordinance, in which leave was granted and issues were framed on 02.05.2017 and evidence of the parties was recorded, there-after the suit was dismissed culminating the decree under challenge through this appeal.

2. The grounds mentioned in the instant application seeking condonation of delay are that previously the applicant handed over the documents to Ghulam Haider Duggal, Advocate, who died of Heart Attack on 18.08.2018 before he could file the appeal. The applicant came to know of the said fact on 03.09.2018 and has immediately filed the appeal in hand therefore prays that delay in filing the same may be condoned.

3. It is observed that the decree was passed by the Court on 23.05.2018 whereby the suit of the applicant was dismissed and this appeal has been filed on 04.09.2018 that is after 104 days. The limitation for filing the appeal was 30 days from the date of decree. The applicant applied for obtaining certified copies on 29.05.2018 and the same were prepared on 23.07.2018 and delivered on 26.07.2018, which means that 56 days were required for preparation of the certified copies and 59 days were consumed on the date when copy was actually delivered to the petitioner. By deducting the afore-referred 89 days i.e. 30 days for limitation and 59 days required for obtaining certified copies for filing appeal, the same still remains time barred by 15 days. The petitioner could only be allowed further time for filing appeal had the appeal been filed on 03.09.2018 i.e. opening day after summer vacation, which time could then be excluded but the same was not done and appeal has been filed on 04.09.2018 thus the period of summer vacation cannot be excluded from limitation. As regards the ground that Ghulam Haider Duggal, Advocate who had died on 18.08.2018, was engaged to file the appeal is concerned, suffice it to say that the applicant had not been able to establish that the said Advocate had accepted the brief from the applicant. Furthermore, it was the duty of the applicant to keep in contact with the office of the advocate to ensure that appeal was filed within time. The law does not help the indolent and each and every day of delay in filing of appeal was required to be explained by the applicant which has not been done in the present case and where delay is not explained through a sufficient reason, the same cannot be condoned. Reliance in this behalf is placed on *Lt.-Col. Nasir Malik v. Additional District Judge and others* (2016 SCMR 1821). Thus, there is no merit in the application for condonation of delay which is accordingly dismissed.

ON MERITS

4. In view of the above, as the application under Section 5 of the Limitation Act, 1908 has been dismissed, the titled appeal is accordingly dismissed, in limine.

SA/M-145/L Appeal dismisses